

2 CORE OPTICAL TECHNOLOGIES, LLC v. NOKIA CORPORATION

Appeal from the United States District Court for the
Central District of California in No. 8:20-cv-01463-JAK-
RAO, Judge John A. Kronstadt.

CORE OPTICAL TECHNOLOGIES, LLC,
Plaintiff-Appellant

v.

CISCO SYSTEMS, INC.,
Defendants-Appellees

2023-1003

Appeal from the United States District Court for the
Central District of California in No. 8:20-cv-01468-JAK-
AGR, Judge John A. Kronstadt.

MAYER, *Circuit Judge*, dissenting.

It is undisputed that TRW Inc. paid for Mark Core to get a Ph.D. while he was working for TRW, J.A. 6774–75, and that Core received a prorated salary and a stipend from TRW, as well as full-time benefits and full-time pension accrual, while he completed his Ph.D. program, J.A. 6771, 6775. There is likewise no dispute that Core’s Ph.D. thesis related to TRW’s business, J.A. 3782, and that Core took the technology he developed for this thesis and patented it, J.A. 6787–88. Indeed, Core acknowledges that his Ph.D. dissertation was “essentially identical” to the provisional patent application that turned into U.S. Patent No. 6,782,211. J.A. 6787 (citation and internal quotation marks omitted). Accordingly, I believe the district court

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correctly granted TRW’s motion for summary judgment after determining that, as a matter of California law, Core did not develop the patented invention “entirely on [his] own time.” *Core Optical Techs., LLC v. Nokia Corp.*, No. 19-cv-02190, 2022 WL 4596547, at *20 (C.D. Cal. Aug. 4, 2022) (citation and internal quotation marks omitted).